

*B.B. v.
S. BRADLEY MELL, et. al.*

*LORETTA PICKENS
June 10, 2025*

*NJL COURT REPORTING & VIDEO
501 KING AVENUE
CHERRY HILL, NJ 08002
856-910-0202*

Page 1

1 SUPERIOR COURT OF NEW JERSEY
2 LAW DIVISION - ESSEX COUNTY
3 NO. ESX-L-7200-19
4 -----X
5 B.B.
6 Plaintiff,
7 V.
8 S. BRADLEY MELL, et. Al.
9 Defendants.
10 -----X
11 KIMBERLY RUGGLES MELL, et. Al.
12 Defendant/Third-Party Plaintiffs,
13 V.
14 D.D., et. Al.
15 Third-Party Defendants.
16 -----X
17 Tuesday, June 10, 2025
18 - - -
19 Sworn deposition testimony of LORETTA
20 PICKENS, taken via ZOOM video conferencing, before
21 Dawn L. Stroud, Court Reporter and Notary Public,
22 commencing at 10:07 a.m.
23 NJL Court Reporting & Video
24 501 King Avenue
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19 (No exhibits)
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22
23 REQUESTS: None
24
25

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1 PROCEEDINGS
2 -----
3 THE REPORTER: Will you be purchasing
4 a copy of the transcript?
5 MR. WAGENBLAST: Yes.
6 THE REPORTER: Do you want that sent
7 to the e-mail address that you provided?
8 MR. WAGENBLAST: Yes, please.
9 THE REPORTER: Okay. Thank you.
10 (Whereupon, discussion held off the
11 record.)
12 THE REPORTER: Will you be purchasing
13 a copy of today's transcript?
14 MR. DALY: Yes, please.
15 THE REPORTER: Two weeks delivery
16 okay?
17 MR. DALY: Yes.
18 THE REPORTER: Sent to that e-mail
19 address?
20 MR. DALY: That's correct.
21 THE REPORTER: Okay. Thank you.
22 (Whereupon, discussion held off the
23 record.)
24 THE REPORTER: Will you be purchasing
25 a copy of today's transcript?

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1 MR. PARAGANO: Yes, please.
2 THE REPORTER: And you want your copy
3 sent to that e-mail, right?
4 MR. PARAGANO: Yes, please. That
5 would be perfect. Thank you.
6 THE REPORTER: Okay. Thank you.
7 (Whereupon, discussion held off the
8 record.)
9 THE REPORTER: Will you be purchasing
10 a copy of the transcript?
11 MS. GUIDA: Yes, mini, please,
12 electronic.
13 THE REPORTER: All right.
14 (Whereupon, discussion held off the
15 record.)
16 THE REPORTER: Will you be purchasing
17 a copy of today's transcript?
18 MR. McENROE: Yes, yes.
19 THE REPORTER: Okay. Do you want that
20 sent two weeks delivery via e-mail?
21 MR. McENROE: Whatever.
22 THE REPORTER: Okay.
23 (Whereupon, discussion held off the
24 record.)
25 -----

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1 LORETTA PICKENS, after having been
2 first duly sworn, was examined and testified as
3 follows:
4 -----
5 EXAMINATION
6 -----
7 BY MR. WHALEN:
8 Q. Thank you. Good morning, Ms. Pickens.
9 My name is Pat Whalen and I'm the attorney for the
10 defendants, Kim Mell and the SBM Family Trust. This
11 morning, we're going to take your deposition.
12 Have you ever had your deposition taken
13 before?
14 A. No.
15 Q. Okay. Let me start with I understand
16 this is a sensitive case, it has sensitive topics.
17 I am not looking to make you uncomfortable in any
18 way. If you need any breaks along the way, take
19 them, take whatever you need.
20 Okay?
21 A. Thank you.
22 Q. Okay. We're about to start. Once we
23 start, you can no longer talk with your attorney, so
24 one of my first questions I ask in the instruction
25 phase of this is have you had enough time to speak

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1 with your lawyer?
2 A. Yes.
3 Q. Okay. Also, it's not an endurance
4 contest, so if you need a break for that reason,
5 just to take a mental health break or whatever, feel
6 free to let us know and do that.
7 Okay?
8 A. Thank you.
9 Q. Okay. You're doing great. One of the
10 instructions I ask is that you let me finish the
11 question before you answer so that Court Reporter
12 can keep up.
13 Okay?
14 A. Yes.
15 Q. All right. And your answers have to be
16 verbal. No uh-huhs, shrugs of the shoulders. If
17 you do that, we'll correct you, but I think you'll
18 be fine on that.
19 Okay?
20 A. Yes.
21 Q. Okay. If you don't understand my
22 question, let me know and I'll rephrase it if
23 there's anything confusing about it.
24 Okay?
25 A. Yes.

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1 Q. If you answer the question, we're going
2 to presume that you did, in fact, understand the
3 question.
4 Okay?
5 A. Yes.
6 Q. All right. In preparation for today,
7 did you review any documents?
8 A. No.
9 Q. In preparation today, besides
10 Mr. Greifinger, did you speak with anybody to
11 prepare for your deposition?
12 A. No.
13 Q. Was that a no?
14 A. No, I didn't.
15 Q. Okay. Okay. Another instruction is if
16 any of the lawyers object or say objection, just
17 hold off on your answer until the lawyers sort that
18 out, understood?
19 A. I understand.
20 Q. Okay. This is a standard question.
21 It's not meant to be insulting.
22 Are you on any medications or alcohol
23 that would affect your ability to testify clearly
24 today?
25 A. No.

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1 Q. Is there anything that could interfere
2 with your testimony, your ability to testify
3 truthfully today?
4 A. No.
5 Q. Okay. Then we will proceed.
6 What's your date of birth?
7 A. October 23rd, 1945.
8 Q. Okay. And how many children do you
9 have?
10 A. Two daughters.
11 Q. And we know one of their names is
12 Laura.
13 What's the other daughter's name?
14 A. Amy.
15 Q. Okay. Her name is Amy Pickens?
16 A. It's Amy Pickens Pike.
17 Q. Pickens Pike. Okay.
18 And does she reside in New Jersey?
19 A. She does.
20 Q. Okay. And how many grandchildren do
21 you have?
22 A. Six.
23 Q. And we know the three children from
24 Laura and you have three other grandchildren, I
25 guess, through Amy?

Page 11

1 A. I do. One of them is a
2 stepdaughter -- a step granddaughter.
3 Q. Understood. Understood. And your
4 grandchildren refer to you, I believe, as Teta; is
5 that accurate?
6 A. Teta.
7 Q. Teta, that's your nickname from your
8 grandchildren?
9 A. It is.
10 Q. Okay. And your husband was know as
11 Toppo; is that accurate?
12 A. Well, Tom.
13 Q. Okay. Did he have a nickname, as well,
14 with the grandkids because some of the documents
15 reflect that.
16 A. Oh, Toppo.
17 Q. Okay. And you currently -- you don't
18 live in New Jersey anymore; is that accurate?
19 A. That's accurate, yes.
20 Q. Okay. What is your current address?
21 A. Florida.
22 Q. And, you know, I don't really need the
23 exact address, but what's the town? Can you at
24 least tell me what town you're in?
25 A. I'm not comfortable saying that.

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1 Q. Is there the reason why?
2 MR. GREIFINGER: Let me step in.
3 MR. WHALEN: Sure.
4 MR. GREIFINGER: I think it has more
5 to do with the sensitivity of the case and there
6 have been allegations throughout the litigation
7 about contact or attempts to contact, so I would
8 prefer to leave it as Florida.
9 If there's a need to take it further,
10 we can discuss it and if unsuccessful, let the Court
11 make a determination on that.
12 MR. WHALEN: I'm fine with that.
13 Other people may not be, but, you know, I'm fine
14 with that for now. And if we run into issues, you
15 know, we'll see. Okay?
16 BY MR. WHALEN:
17 Q. Ms. Pickens, how about this question:
18 You moved, I believe, in late 2017, the fall of
19 2017, from New Jersey to Florida; is that accurate?
20 A. As I recall. It's been a while.
21 Q. Okay. Well, since you sold your home
22 in New Jersey, have you lived in the same residence
23 in Florida?
24 A. We have not.
25 Q. How many times have you and your

Page 13

1 husband moved?

2 **A. Twice. Two times.**

3 Q. Okay. And is that once from New Jersey

4 to Florida and then an interim move within Florida?

5 **A. Yes.**

6 Q. Okay. How long have you been at your

7 current Florida address?

8 **A. We've been here a year.**

9 Q. Okay. What was your home address in

10 New Jersey?

11 **A. 9 Blue Heron in Gladstone.**

12 Q. Okay. And I can represent to you that

13 I knew that. I just needed to ask you the question.

14 **A. Okay.**

15 Q. It wasn't --

16 **A. I had to think for a moment.**

17 Q. That's okay. You got it. And that's

18 where you lived -- you lived at 9 Blue Heron Road in

19 Gladstone back in 2016 and 2017?

20 **A. That's correct.**

21 Q. And that's the address you moved from

22 and relocated to Florida; is that accurate?

23 **A. That's accurate, yes.**

24 Q. Okay. How long did you reside at that

25 Gladstone address?

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1 **A. I have to think for a minute.**

2 Q. And I don't need exactitude. If you

3 have an estimate.

4 **A. Yes, five years.**

5 Q. Okay. Did you live in New Jersey

6 before that Gladstone address?

7 **A. Prior to that, many years, we lived in**

8 **Madison.**

9 Q. Okay. Was that sort of the family

10 home?

11 **A. When my girls were young, yes.**

12 Q. Okay. Is it safe to say you lived in

13 Madison for 20 or so years --

14 **A. Correct.**

15 Q. -- approximately?

16 **A. Correct.**

17 Q. And then you went from Madison to

18 Gladstone?

19 **A. We rented for a little while in New**

20 **Jersey.**

21 Q. Okay. When you say a little while, was

22 that a year or two?

23 **A. I would say so.**

24 Q. Okay. But you owned the home in

25 Gladstone; is that accurate?

Page 15

1 **A. We did.**

2 Q. Okay. And I'll represent to you the

3 pertinent time period in this case is, for the

4 purposes of your deposition today, 2015 to 2017.

5 During that time period, did you and

6 your husband also own a home in Florida?

7 **A. We didn't at that time. We were**

8 **renting. We rented. We would go down for a couple**

9 **of months in the summer and we would rent either a**

10 **condo -- a small condo or a small house.**

11 Q. Okay. Was that for the summer or the

12 winter?

13 **A. Winter. We rented in the winter.**

14 Q. Okay. And I've heard the term snow

15 bird. People refer to it as snow birds. They leave

16 New Jersey and they go down for the winter in

17 Florida.

18 Is that kind of what you were doing for

19 a few years there?

20 **A. Yes.**

21 Q. All right. So in the winter of 2016,

22 were you down in Florida at one of those rented

23 condo places?

24 **A. In the winter of '16? It's really**

25 **hard for me to remember.**

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1 **MR. GREIFINGER:** Let me just -- excuse

2 me. I'm sorry. When we say winter of '16, the

3 winter -- do you mean '16-'17 or '15-'16?

4 **MR. WHALEN:** I'll clarify that,

5 Richard.

6 **BY MR. WHALEN:**

7 Q. So I can make it even easier. We're

8 going to, obviously, question you today about a

9 videotape and an incident involving this case.

10 At the time you discovered that video,

11 were you down in Florida?

12 **A. I was.**

13 Q. And you were renting -- you and your

14 husband were renting a condo?

15 **A. We were.**

16 Q. And where was that condo located, what

17 town?

18 **A. We were in a small house then and it**

19 **was on Sanibel Island.**

20 Q. Okay. Are you originally from New

21 Jersey or are you originally from Florida?

22 **A. I'm originally from West Virginia.**

23 Q. Okay. Okay. You don't recall exactly

24 when you sold the home in Gladstone, but do you

25 recall how long were you trying to sell the house?

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1 **A. I would guess it was six months**
2 **perhaps --**
3 Q. Okay.
4 **A. -- but I could be wrong. I don't**
5 **really remember how long it took to sell that house.**
6 Q. Was that something you were planning on
7 doing? When did you decide you wanted to leave
8 Gladstone?
9 **A. My husband became legally blind and**
10 **the upkeep, the cost and taxes were just too much**
11 **for us and, also, he was not well and so we decided**
12 **to move just to financially make it easier.**
13 Q. Okay. So besides financial reasons and
14 besides the health concerns of your husband, were
15 there any other reasons why you decided to move from
16 Gladstone, New Jersey?
17 **A. There was a huge snowstorm, I think,**
18 **the winter of '16, I'm not sure, and we -- maybe it**
19 **was '16 and we decided -- I had to shovel. I just**
20 **didn't want to do it anymore.**
21 Q. Enough was enough?
22 **A. It was enough. Exactly.**
23 Q. Okay. All right. Do you still own a
24 home or any property in New Jersey?
25 **A. We don't.**

Page 18

1 Q. Do you come up to visit your daughters
2 and granddaughters in New Jersey?
3 **A. On occasion. It's difficult. My**
4 **husband has stage four cancer --**
5 Q. Oh.
6 **A. -- and he can't fly, so it requires**
7 **driving and I try -- we try, but --**
8 Q. Okay. So it's more if they're
9 available to come down and visit you guys down in
10 Florida?
11 **A. Correct.**
12 Q. Understood. Did you have a career or a
13 job? Did you retire at a certain point?
14 **A. I was a florist in New York City for**
15 **several years, but I was happy to be -- have a**
16 **garden and paint and --**
17 Q. Understood. Understood. Do you still
18 do those activities down in Florida now?
19 **A. When I have time, I do.**
20 Q. Okay.
21 **A. Care giving is a full-time job.**
22 Q. Understood. Understood. Did you and
23 your husband ever rent a place in Nantucket?
24 **A. We did.**
25 Q. How many times? How many years?

Page 19

1 **A. In Nantucket, I believe, it was just**
2 **one year. One year.**
3 Q. And do you know approximately when that
4 was?
5 **A. I honestly cannot remember.**
6 Q. Okay. Did Laura and her family join
7 you on that Nantucket trip?
8 **A. They were there, not in our house.**
9 **They were there and my oldest daughter, Amy, was**
10 **there --**
11 Q. Okay.
12 **A. -- and her --**
13 Q. I'm sorry. I interrupted you. Go
14 ahead.
15 **A. And her family.**
16 Q. But Laura and her family stayed at a
17 different property?
18 **A. That's right.**
19 Q. Understood. Now, obviously, you're
20 here for a deposition on a lawsuit involving your
21 granddaughter, Lily.
22 Do you understand that?
23 **A. I do.**
24 Q. And you're aware of the fact that she's
25 filed a lawsuit against at Brad Mell and certain

Page 20

1 other defendants?
2 **A. I am.**
3 Q. When did you become -- when did you
4 first become aware of that lawsuit?
5 **A. I don't recall.**
6 Q. Do you remember how you became aware of
7 that lawsuit?
8 **A. I really don't recall. I don't**
9 **remember when that -- when I was aware of that.**
10 Q. Okay. What, if anything, do you know
11 about Lily's lawsuit against Brad Mell and others?
12 **A. Very little to be honest.**
13 Q. Well, tell me. Share with me what you
14 know.
15 **A. What I know about her lawsuit --**
16 Q. Correct.
17 **A. -- in particular only that she's --**
18 **there's a lawsuit. That's really all I know about**
19 **it. I don't know the particulars. I don't know who**
20 **she's -- only Mr. Mell.**
21 I don't know who else is involved in
22 it. I have no clue.
23 Q. Okay. Related to that, your response,
24 were you aware that she's suing my client, Brad
25 Mell's ex-wife, Kim?

Page 21

1 **A. I was not.**
2 Q. Were you aware that she's -- Lily's
3 suing the Mell children?
4 **A. I was not. I am not.**
5 Q. All right. Did it ever come to your
6 attention that there's allegation of alleged
7 fraudulent transfers being made by people in the
8 Mell family?
9 **A. No.**
10 Q. No one -- Lily, Tony or Laura, they've
11 never discussed that with you?
12 **A. No.**
13 Q. Have you ever met Brad Mell?
14 **A. Never.**
15 Q. How about Eliza Mell? Were you
16 familiar with her?
17 **A. I did meet her once. Ella and she**
18 **were at the same college. I met her there on one**
19 **occasion, I believe.**
20 Q. Was that Colby College?
21 **A. Yes.**
22 Q. Did you visit her -- did you visit Ella
23 at Colby College frequently?
24 **A. No. We visited for grandparents' -- I**
25 **believe it was grandparents' weekend and we went for**

Page 22

1 **that occasion and for her graduation.**
2 Q. Okay. So about two visits?
3 **A. Yes.**
4 Q. Was there a grandparents' weekend every
5 year?
6 **A. I have no idea. I don't know. We**
7 **went that year. It might've been her last year. We**
8 **decided to go. I have no idea.**
9 Q. Do you know if it was before or after
10 the discovery of the inappropriate relationship
11 between Mr. Mell and Lily?
12 **MR. PARAGANO:** Object to form. You
13 can answer.
14 **THE WITNESS:** I have no idea. I don't
15 know.
16 **BY MR. WHALEN:**
17 Q. All right. But you met Ella -- I'm
18 sorry.
19 You met Eliza Mell during the
20 grandparents' weekend?
21 **A. Yes. I could also have met her very**
22 **briefly on Nantucket very briefly.**
23 Q. How about in New Jersey? Did you ever
24 meet her or see her there in --
25 **A. I don't recall meeting her in New**

Page 23

1 **Jersey, no.**
2 Q. Okay. Were you aware that she and Ella
3 were friends?
4 **A. I was.**
5 Q. All right. Were you aware of that
6 fact, that Ella and Eliza Mell were friends, when
7 you discovered that video that we're going to talk
8 about shortly?
9 **A. I'm not sure that I knew. I don't**
10 **recall that I knew that then.**
11 Q. Well, the then is like when you
12 discovered the video.
13 At some point, Ms. Pickens, did you
14 discover that Eliza Mell and Ella Canon were friends
15 after you discovered that video?
16 **A. Your question is confusing me.**
17 Q. Okay.
18 **A. I don't understand it.**
19 Q. Okay. Again, at some point -- and I'm
20 going to get to this issue -- you discovered a
21 video, I believe, involving Ella at your home with
22 an older man; is that accurate?
23 **A. I didn't know who it was. There was a**
24 **video.**
25 Q. Right, with an older man at your home?

Page 24

1 **A. Correct.**
2 Q. After discovering that video, did you
3 come to learn that that older man was Eliza Mell's
4 dad?
5 **A. Many years later.**
6 Q. Can you estimate how many years later?
7 **A. I can't. I'm sorry. It's been a long**
8 **time. Over ten years ago. A lot has happened in my**
9 **life since then.**
10 Q. Okay. When you met Eliza Mell up at
11 Colby College, did you know that she was the older
12 man's daughter?
13 **A. Honestly, I didn't know whose daughter**
14 **she was. I knew her as Eliza. I don't even know**
15 **that I knew her last name to be honest with you.**
16 **She was Ella's friend. She was introduced as Eliza.**
17 **I don't recall that I ever remember a**
18 **last name. I mean, kids, they just say, this is my**
19 **friend Eliza, and that's how it went.**
20 Q. Well, let me ask you this: Did it ever
21 come to your attention -- and specifically did
22 Laura, your daughter, ever tell you that the older
23 man in your home was the father of one of Ella's
24 friends?
25 **A. If so, it was years later. It was**

Page 25

1 years later, so, I mean, I didn't know it at the
2 time. I don't think I knew for a year or so.
3 Q. Okay. And do you know how you came to
4 learn that the older man's daughter was Ella's
5 friend?
6 A. Do I recall how I remember?
7 Q. How you came to learn.
8 Ms. Pickens, how did you come to learn
9 that the older man's daughter was Ella's friend?
10 A. I need a moment.
11 Q. Sure.
12 (Whereupon, brief pause.)
13 THE WITNESS: You know, it's all so
14 scrambled at that time. I didn't know who Mell was.
15 I knew Eliza as Eliza. I didn't connect the two
16 and --
17 BY MR. WHALEN:
18 Q. I understand that, Ms. Pickens.
19 MR. PARAGANO: She's got to finish her
20 answer.
21 BY MR. WHALEN:
22 Q. Yeah, you can finish your answer.
23 That's fine.
24 A. I didn't connect the two. At some
25 point after I was in Florida, I -- I was -- I don't

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1 think it was ever mentioned that it was a friend of
2 Ella's. I think the name was mentioned, Brad Mell,
3 but I don't think it was -- I ever connected Eliza
4 with him.
5 I didn't know Eliza's last name. I
6 knew all of Ella's friends by their first names and
7 I didn't know they were connected.
8 Q. Okay. Understood that and I'll try
9 again. The question doesn't involve the name Brad
10 Mell or Eliza Mell. I'm just going to refer to the
11 older man that you spotted on the video.
12 Okay?
13 A. Yes.
14 Q. So did it come to your attention that
15 the older man's daughter -- the older man that was
16 on that video that you discovered, that his daughter
17 was Ella's friend?
18 A. At some point. I don't know when.
19 Q. Okay. And I believe your testimony was
20 that it was at least a year after you discovered
21 that video that you found out it was the older
22 man's -- the older man's daughter was Ella's friend?
23 A. I'm presuming. I'm -- I -- to my best
24 of my knowledge, it was about that time.
25 Q. Okay. And do you recall how that was

Page 27

1 brought to your attention, that the older man's
2 daughter was Ella's friend?
3 A. I don't remember. I really don't.
4 It's so long ago. It really is. I can't remember
5 how that was -- how I was told that.
6 Q. Okay. Did it concern you that the
7 older man's daughter was a high-school friend of
8 Ella Canon?
9 A. It concerned me when I learned of it,
10 but I was more concerned about Ella.
11 Q. And did you talk to Ella about your
12 concerns?
13 A. No.
14 Q. Ever?
15 A. No, actually, I didn't.
16 Q. Okay. Were you aware of the fact that
17 the older man's daughter was attending the same
18 college after Ella Canon?
19 MR. GREIFINGER: I'm going to object
20 to the form of the question given her testimony.
21 MR. PARAGANO: Object to the form.
22 BY MR. WHALEN:
23 Q. Okay. But you can answer if you can.
24 A. Well, whenever -- a year later or
25 whenever I learned who Brad Mell was and I was at

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1 that point aware, but I can't give you a date. I
2 don't remember.
3 Q. Okay. Have you ever spoken with any of
4 Lily's attorneys in this case?
5 A. No, no.
6 Q. At any point?
7 A. I don't know who they are, no.
8 Q. Okay. Okay. Fair enough. Was it ever
9 brought to your attention by either Lily or anybody
10 in Lily's family that Mr. Mell was trying to repay
11 your daughter's family for the damage he had done?
12 A. No, I -- no.
13 Q. Did it ever come to your attention that
14 Mr. Mell had attempted to apologize with monies and
15 gifts to Laura and the family to make up for the
16 damage he had done?
17 A. No.
18 Q. No one in Laura's family ever -- Laura
19 and no one in her family ever told you about that?
20 A. No.
21 MS. GUIDA: Objection to form.
22 BY MR. WHALEN:
23 Q. Did you have a cell phone back in 2016,
24 2015?
25 A. I did.

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1 Q. Do you still have the same cell phone?
2 A. No.
3 Q. Do you recall engaging in any text
4 communications with Laura about Mr. Mell or about
5 this older man that you spotted in your home?
6 A. I have no idea. I -- I -- are you
7 referring to when I first saw the videos?
8 Q. Yeah, yeah, when you first discovered
9 the video.
10 A. There were no texts.
11 Q. How about e-mails?
12 A. No. We spoke on the phone.
13 Q. What's that?
14 A. On the phone, we spoke.
15 Q. All right. Did you ever engage in any
16 text messages with Laura or Tony regarding this
17 relationship that Ella was having with an older man?
18 A. No.
19 Q. All right. At any point, Ms. Pickens,
20 did it come to your attention that your daughter,
21 Laura, was working together with Brad Mell on
22 real-estate deals?
23 MS. GUIDA: Objection to form.
24 BY MR. WHALEN:
25 Q. You can answer.

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1 MR. GREIFINGER: I'm going to object
2 to that also as to form. You may answer.
3 THE WITNESS: I may answer?
4 MR. GREIFINGER: Yes.
5 THE WITNESS: No.
6 BY MR. WHALEN:
7 Q. And I'm sorry. Let me see if we can
8 clarify this.
9 At some point, Ms. Pickens, were you
10 advised and told that the older man on that video
11 that you uncovered in your home was Brad Mell?
12 A. At some point, I was. I didn't know
13 the man. I didn't know who he was and I can't
14 remember the date or the -- I don't remember.
15 Q. Can you estimate the time from
16 discovering the video and being told that the older
17 man in your home was Brad Mell?
18 A. Oh, I can't. I don't remember.
19 Q. Well, I'll try to ask some questions
20 that may help you remember.
21 Was it days later, weeks later?
22 A. Oh, it was more like months later.
23 Months later.
24 Q. Okay. And do you know how that came
25 about, how -- you know, how you learned that the

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1 name associated with that older man was on the video
2 that was found in your home?
3 A. I can't remember. I might have asked,
4 but I don't recall asking, but, at some point -- I
5 did learn his name at some point. I just -- I can't
6 give you a date or an exact time.
7 Q. Okay. I understand it was months later
8 and that you can't give an exact date, but do you
9 know who told you?
10 A. Oh, my goodness. I'm guessing it was
11 my daughter, Laura.
12 Q. Do you have any recollection of Laura
13 actually telling you, you know, connecting a name
14 with the older man on that video?
15 A. I -- at the point, I was -- I think I
16 didn't know who he was. It was just a name and --
17 it was just a name to me and that's all I recall.
18 Q. Okay. Did anyone from law enforcement
19 ever speak to you about the relationship between
20 Lily Canon and Brad Mell?
21 A. No.
22 Q. Were you aware at any point,
23 Ms. Pickens, that Brad Mell was giving Lily Canon
24 flying lessons?
25 A. No.

Page 32

1 Q. So prior to today, you did not know
2 that?
3 A. True. That's true. I knew Lily was
4 taking flying lessons, but I only knew she is taking
5 flying lessons. I didn't know who was giving her
6 flying lessons.
7 Q. Okay. Were you aware of -- well,
8 strike that.
9 Did you become aware at a certain point
10 that Brad Mell was considered a good friend by your
11 daughter, Laura Canon?
12 MR. PARAGANO: Object to form. You
13 can answer.
14 MS. GUIDA: Join.
15 BY MR. WHALEN:
16 Q. You can answer.
17 A. Excuse me?
18 Q. You can answer.
19 A. Oh, repeat the question.
20 Q. Sure.
21 A. I lost my train of thought there.
22 Q. Sure. Ms. Pickens, at any point, did
23 it come to your attention that your daughter, Laura
24 Canon, considered Brad Mell a good friend?
25 MR. PARAGANO: Objection to form.

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1 **MS. GUIDA:** Objection to form.
2 **THE WITNESS:** I didn't know if they
3 were good friends. I -- I knew at some point that
4 they were at acquaintance, but I did not know what
5 sort of friendship they had.
6 **BY MR. WHALEN:**
7 Q. Okay.
8 **A. Excuse me. I need a drink of water.**
9 **Okay?**
10 Q. Sure.
11 (Whereupon, brief pause.)
12 **MR. GREIFINGER:** Take as much time as
13 you need.
14 **THE WITNESS:** Thank you, Richard.
15 (Whereupon, brief pause.)
16 **THE WITNESS:** Thank you.
17 **BY MR. WHALEN:**
18 Q. Okay. You're good?
19 **A. I'm good.**
20 Q. Okay. When you lived in Gladstone in
21 that area in Madison, were you familiar with a place
22 known as the Hunt Club?
23 **A. No, no.**
24 Q. Did you become aware of your daughter
25 ever joining the Hunt Club?

Page 34

1 **A. No.**
2 **MR. PARAGANO:** It's actually the Essex
3 Hunt Club.
4 **BY MR. WHALEN:**
5 Q. Yeah. I don't know if that helps, the
6 Essex Hunt Club.
7 **A. I didn't know what clubs they belong**
8 **to or -- you know, I didn't know.**
9 Q. Okay. Did you go to Ella's high school
10 graduation?
11 **A. Yes, I did.**
12 Q. Do you recall seeing the older man that
13 was on that video just about five months earlier at
14 that graduation?
15 **A. I didn't. I mean, it was a huge**
16 **graduation. We were sitting in the back. I -- no.**
17 **I didn't know what he looked like. I wouldn't have**
18 **known. There were lots of people there.**
19 Q. Okay. Did your daughter tell you in
20 advance of the graduation that that older man from
21 the video might be at your granddaughter's
22 graduation?
23 **A. No, no.**
24 Q. Did you know at the time of Ella's
25 graduation that the older man on that video and Ella

Page 35

1 were in a relationship?
2 **A. No, no -- I -- I didn't understand**
3 **that question.**
4 Q. Well, at any point in time,
5 Ms. Pickens, did it come to your attention that the
6 older man that was in your home on that video that
7 you saw was in an actual relationship with Ella
8 Canon?
9 **A. No.**
10 **MR. PARAGANO:** Object to form.
11 **BY MR. WHALEN:**
12 Q. At no point -- strike that.
13 Your daughter, Laura, never told you
14 that the older man on that video and Ella Canon were
15 in a relationship?
16 **MS. GUIDA:** Objection to form.
17 **THE WITNESS:** Months later.
18 **BY MR. WHALEN:**
19 Q. Approximately how many months later?
20 **A. I don't -- I can't remember.**
21 Q. Well, was it before or after
22 graduation -- Ella's graduation?
23 **A. I can't remember. I don't recall.**
24 **I'm sorry.**
25 Q. Okay. What do you recall about being

Page 36

1 told that they were in a relationship, the older man
2 on the video and Ella?
3 **A. Only that I was heartbroken.**
4 Q. Who told you?
5 **A. It had to be Laura. Laura told me, my**
6 **daughter.**
7 Q. And had you had any conversations
8 prior -- well, again, you don't know when that
9 happened, right, correct?
10 **A. I can't remember.**
11 Q. All right. You said you were
12 heartbroken, correct?
13 **A. I was.**
14 Q. Did you express concerns to your
15 daughter about that relationship?
16 **A. I did.**
17 Q. What did you tell her?
18 **A. That I was devastated for her, for**
19 **Ella, for her family and I had a lot on my plate at**
20 **that time with my husband and that she had my**
21 **support and I was there when she needed me.**
22 **I had to leave it to my daughter and I**
23 **trusted her to take care of Ella and protect Ella**
24 **and I was there if she needed me.**
25 Q. Understood. And did you tell her you

Page 37

1 thought that the police should be involved?
2 **A. Excuse me?**
3 Q. Did you tell Laura that you thought the
4 police should be involved?
5 **A. I can't recall saying that. I left it**
6 **to her and her husband and the family.**
7 Q. Well, were you concerned about Ella's
8 safety?
9 **A. I was concerned about Ella, period, in**
10 **every way.**
11 Q. Did that include her safety?
12 **A. Of course. I always want her to be**
13 **safe.**
14 Q. Did you understand that -- did you
15 think this was a bad relationship, a dangerous
16 relationship?
17 **MR. PARAGANO:** Object to form.
18 **MS. GUIDA:** Join.
19 **THE WITNESS:** Excuse me?
20 **BY MR. WHALEN:**
21 Q. I'll ask you a different question.
22 Did you try to persuade your daughter,
23 Laura, to end that relationship between the older
24 man and Ella?
25 **MS. GUIDA:** Objection to form.

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1 **MR. GREIFINGER:** I object to that,
2 too.
3 **BY MR. WHALEN:**
4 Q. You can answer.
5 **A. Am I to answer that or not?**
6 **MR. GREIFINGER:** Yes, yes.
7 **THE WITNESS:** Please repeat the
8 question.
9 **MR. WHALEN:** All right. Can you read
10 back that question?
11 (Whereupon, the Reporter read back.)
12 **THE WITNESS:** I didn't have extensive
13 conversations with my daughter after our initial
14 conversation on the telephone. They were rare, our
15 conversations, because, as I said, I had a lot going
16 on in my life with my husband, so blindness and
17 other issues, and I left it to her.
18 I trusted her and her husband to do
19 the very best for Ella.
20 **BY MR. WHALEN:**
21 Q. I understand that, but my question was
22 did you attempt to persuade her to end that
23 relationship between the older man and your
24 granddaughter?
25 **MS. GUIDA:** Objection to form.

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1 **BY MR. WHALEN:**
2 Q. You can answer.
3 (Whereupon, brief pause.)
4 **THE WITNESS:** Is that -- are you
5 asking me that question?
6 **BY MR. WHALEN:**
7 Q. Yes.
8 **A. I did not.**
9 Q. Okay.
10 **A. I did not try to persuade her to do**
11 **anything. I left it to her and Tony.**
12 Q. When you first discovered the video,
13 Ms. Pickens, did you tell your daughter that you
14 were going to contact law enforcement?
15 **A. No.**
16 Q. Did you think about contacting law
17 enforcement when you saw this older man in your
18 house with your high-school-aged granddaughter?
19 **A. No.**
20 Q. At your Gladstone home, did you have
21 video cameras set up in 2015, 2016?
22 **A. In Gladstone?**
23 Q. Yeah.
24 **A. I had camera's call Canary Cameras.**
25 **It wasn't a security system. It was just cameras.**

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1 Q. Okay. What's the Canary system?
2 **A. I'm sorry?**
3 Q. What's a Canary Camera system? What is
4 that?
5 **A. It's just a camera. It just takes**
6 **pictures. The audio is not that great. It just**
7 **takes photos and I -- I don't know. They're still**
8 **available, but they're just cameras.**
9 **It just records movement in the house**
10 **and -- and people moving in the house.**
11 Q. Okay. So it detects motion and records
12 images when there's motion?
13 **A. Correct.**
14 Q. But there was some audio?
15 **A. Yes, there was some.**
16 Q. And how many of these cameras did you
17 have in your Gladstone home?
18 **A. Two.**
19 Q. And I know -- I believe one was in the
20 kitchen; is that accurate?
21 **A. Correct.**
22 Q. Where was the other one?
23 **A. In the living room.**
24 Q. Okay. And when did you install those
25 cameras?

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1 **A. A couple of weeks before I left for**
2 **Florida.**
3 Q. And what made you and your husband do
4 that?
5 **A. I had workmen coming in to work on the**
6 **electric in the basement. We were having our**
7 **basement finished off a little bit. And my cleaning**
8 **lady, Maggie, would let them in and I wanted to make**
9 **sure they were coming for one thing because we were**
10 **paying good money and I just wanted to make sure**
11 **they weren't going into any of our other spaces and**
12 **I could monitor their coming and going.**
13 Q. And did you, in fact, do that? Did you
14 monitor the contractors' coming and going?
15 **A. I did, but Maggie was usually there.**
16 Q. Okay. But did you have any outside
17 cameras?
18 **A. No.**
19 Q. So it was just two cameras, one in the
20 living room, one in the kitchen?
21 **A. That's correct.**
22 Q. And would that capture access to and
23 from the basement?
24 **A. It would.**
25 Q. Okay. And was that -- would you

Page 42

1 receive notifications on your phone, your cell
2 phone, from that camera?
3 **A. I would.**
4 Q. Okay. So any time there was motion in
5 the house, you would get, like, a little beep or an
6 alert of some kind of your cell phone?
7 **A. I would, yes.**
8 Q. Okay. All right. And would it go into
9 storage? The images depicted would go into storage?
10 **A. They would.**
11 Q. And it would be -- correct me if I'm
12 wrong, it would be video and some audio?
13 **A. Correct, that's right.**
14 Q. Okay. And did you set them up or your
15 husband?
16 **A. I set them up with the help of Maggie**
17 **probably.**
18 Q. Okay. And at some point -- well,
19 strike that.
20 Isn't it true, Ms. Pickens, that you
21 discovered your granddaughter, Ella, and an older
22 man, who we know as Brad Mell, in your kitchen on
23 that video?
24 **A. I did.**
25 Q. All right. And that was as a result of

Page 43

1 a hidden camera in the kitchen?
2 **A. It wasn't hidden. It was right out in**
3 **the open.**
4 Q. Okay.
5 **A. Both of them were.**
6 Q. I should've asked you that.
7 Where was the camera placed in the
8 kitchen?
9 **A. It was right on the counter.**
10 Q. Okay. And how about the one in the
11 living room, where was that placed?
12 **A. That was on a back table, as I recall,**
13 **so that it could expand into the living room to the**
14 **front door.**
15 Q. When did you discover the video --
16 strike that.
17 Tell me what you recall about being
18 alerted by your Canary Camera that your
19 granddaughter was at the house with the older man.
20 **MR. PARAGANO:** Object to form.
21 **THE WITNESS:** Are you asking when I
22 discovered?
23 **BY MR. WHALEN:**
24 Q. No. I'm asking you tell me what
25 happened. Tell me how you learned of this

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1 existence.
2 **A. I was flying down to Florida and it**
3 **was very late. It was a late flight. My husband**
4 **doesn't drive, he's legally blind, so I was taking a**
5 **taxicab from the airport to the house we had rented**
6 **and I got the pings on the camera.**
7 I saw the video, but I didn't know
8 exactly what I was seeing. It was late. I was in
9 the taxi. I -- that's when I found them, just when
10 I arrived in Florida.
11 Q. Okay. So you didn't really know what
12 you saw the first time you got the notice?
13 **A. I didn't. I didn't. I think it was**
14 **past midnight by the time I got there and I was in a**
15 **cab and I very tired and I just -- I wasn't quite**
16 **sure what I was seeing.**
17 Q. Okay. And this was your flight from
18 New Jersey to Florida, correct?
19 **A. Correct.**
20 Q. This was the start of your snow bird
21 wintering in 2015 to 2016, correct?
22 **A. I can't remember if it was '15 or '16**
23 **or '16 or '17. I can't remember. I can't remember.**
24 **It must have been '16, '17.**
25 Q. I know the years don't really -- I'm

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1 not concerned about the accuracy of the years
2 because I can represent to you the exact, you know,
3 when the video was taken, but let me ask it a
4 different way.
5 You saw the video after you landed in
6 Florida and were now in the taxi to your condo in
7 Florida?
8 **A. That's correct.**
9 Q. And this was the start of your winter
10 stay in Florida for that winter season, correct?
11 **A. Correct.**
12 Q. And when would you typically go, you
13 and your husband? Would you go down in December or
14 January?
15 **A. I think it was February this time. I**
16 **stayed a little later in New Jersey because we had**
17 **work going on and I wanted things I had -- I had**
18 **things I had to finish out and Tom was already in**
19 **Florida.**
20 Q. Okay. He went down earlier?
21 **A. Yes.**
22 Q. Okay. So you were alone and you took a
23 taxi?
24 **A. Correct.**
25 Q. Okay. And so you think it was February

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1 of that winter that you got the notification?
2 **A. I believe so.**
3 Q. Do you know approximately when in
4 February, early February, late February?
5 **A. I don't. I can't remember.**
6 Q. Okay. But you know it was when you
7 went down for the winter season in Florida?
8 **A. Correct, yes.**
9 Q. Great. So I'm assuming that you looked
10 at the video a second time to figure out what you
11 were seeing; is that accurate?
12 **MR. PARAGANO:** Object to form.
13 **THE WITNESS:** I -- I did, but I got to
14 the condo -- I mean, to the house and I was so
15 exhausted, overwhelmed and I went to bed. I went to
16 sleep and I needed to go to sleep.
17 It was very late as I recall. I had
18 just needed to let things -- I just needed to have
19 some time to understand what I was seeing, so I
20 think it was the next morning that I looked at those
21 videos again.
22 **BY MR. WHALEN:**
23 Q. Okay. And what did you see?
24 **A. I saw a man and I saw Ella briefly in**
25 **our living room and in the kitchen.**

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1 Q. So it was on both cameras?
2 **A. Yes.**
3 Q. Okay. And there were a series of
4 videos from the living room and the kitchen that
5 depicted this older man and Ella in your home,
6 correct?
7 **A. Correct. I couldn't actually tell**
8 **from the video at first if it was an older man or**
9 **not. I -- I really had to look at it several times.**
10 Q. Okay. And did you do that?
11 **A. Well, I looked at it the next morning**
12 **and -- when I had some rest and I could tell he was**
13 **older.**
14 Q. And did that concern you that he was
15 older?
16 **A. Of course.**
17 Q. How did you determine that he was
18 older? Were you able to zoom in on the images or
19 things like that?
20 **A. I couldn't zoom in so much. I believe**
21 **it was just his demeanor. It was not -- his**
22 **demeanor was not that of a young man.**
23 Q. How about did you see that he had a
24 wedding ring and a Rolex on?
25 **A. No, I couldn't tell that.**

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1 Q. Do you recall telling that to Laura?
2 **A. No, I don't.**
3 Q. All right. Do you recall how old Ella
4 was at the time?
5 **A. I have six granddaughters and**
6 **sometimes I have to think back about who has a**
7 **birthday when. Ella's birthday. Ella was 17.**
8 Q. Okay. She was in high school, correct?
9 **A. Correct.**
10 Q. All right. And the videos that you saw
11 in the kitchen, what do you recall seeing? What did
12 those videos depict from the kitchen camera?
13 **A. There was just some movement. I think**
14 **they might've looked in the refrigerator for**
15 **something to drink, but that was about it.**
16 Q. How about in the living room?
17 **A. In the living room, I noticed that the**
18 **man looked at a painting that was -- we had up on**
19 **the wall and that was it.**
20 Q. Okay.
21 **A. I mean, that's all that stands out**
22 **from those videotapes.**
23 Q. What was the duration of those videos?
24 **A. They were minutes really. I couldn't**
25 **give you an exact time. I would say minutes.**

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1 Q. In both the kitchen and the living
2 room?
3 A. **Correct.**
4 Q. Did they go back and forth between the
5 kitchen and the living room?
6 A. **I don't recall that, no. I think the**
7 **living room camera captured the living room, the**
8 **kitchen captured the kitchen and they were minutes**
9 **each.**
10 Q. Right, correct. My question was did
11 they go back and forth between the kitchen and the
12 living room?
13 A. **Are you speaking of Ella and --**
14 Q. Ella and the older man, right.
15 A. **I couldn't tell that. I couldn't see**
16 **that. I couldn't tell that from the video.**
17 Q. All right. Do you recall being able to
18 hear anything from those videos of Ella with the
19 older man in your kitchen and living room?
20 A. **Very little. I recall Ella saying**
21 **something about the house, when it was built. Other**
22 **than that, I don't recall anything else.**
23 Q. Do you recall Ella saying anything
24 about you?
25 A. **No.**

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1 Q. Do you recall anything on the video
2 depicting anything inappropriate between the older
3 man and Ella?
4 A. **No, no.**
5 Q. Holding hands or hugging or anything
6 like that, any physical contact?
7 A. **No.**
8 Q. Why did the video concern you?
9 A. **It would have concerned me had it been**
10 **a young man in my house with Ella. I would have**
11 **been concerned if she had been in my house with any**
12 **man, young or old.**
13 **I mean, it was unlike Ella to me.**
14 Q. Okay. Did you save those videos?
15 A. **No. They disappear after a certain**
16 **amount of time.**
17 Q. So did you ever try to save them?
18 A. **I didn't.**
19 Q. Okay. Did you share them with anybody?
20 A. **Not that I recall.**
21 Q. Did you ever show the videos to anyone?
22 A. **No.**
23 Q. How about to your husband?
24 A. **No. He wouldn't be able to see them.**
25 **He's legally blind.**

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1 Q. Understood. Understood. Did you --
2 well, strike that.
3 So were you angry about the fact that
4 Ella was in your home with an older man?
5 A. **I wouldn't say angry. I was**
6 **concerned.**
7 Q. Okay. And why were you concerned about
8 it?
9 A. **I would have been concerned, as I**
10 **said, seeing Ella in my home with any man, young or**
11 **old --**
12 Q. Well --
13 A. **-- or someone I didn't know.**
14 Q. Did you take steps to find out who that
15 was in your home?
16 A. **I'm sorry?**
17 Q. Did you take steps to find out who that
18 man was that was in your home looking at your
19 paintings?
20 A. **I did not.**
21 Q. You never asked Ella or Laura what the
22 name of this guy was?
23 **MR. PARAGANO:** Object to form.
24 **THE WITNESS:** When I spoke with Laura
25 in -- the next day, she was very -- she was very

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1 upset. I was very upset, she was very upset and she
2 didn't offer me -- she didn't give me any names at
3 that point.
4 She just said -- I think it was, oh,
5 mom, I'll take care of this, and I knew by the sound
6 of her voice she was very upset and she just said,
7 oh, mom, let me take care of this.
8 I think it was something like that.
9 **BY MR. WHALEN:**
10 Q. Okay. Did she tell you why she was so
11 upset? Did Laura explain why she was so upset?
12 A. **Not at that time, no.**
13 Q. Well, at any point in time, did she
14 explain why she was so upset?
15 A. **Months later.**
16 Q. What did she tell you?
17 A. **Let me -- I'm trying to recall. The**
18 **words cannot be exact because it's been a long time**
19 **ago.**
20 **(Whereupon, brief pause.)**
21 **THE WITNESS:** She said, I'm sorry you
22 had to see this, mom. I'm sorry you're involved or
23 in any way have to be involved. We're very upset
24 and I just ask for your support and your help right
25 now, and just that was pretty much it.

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1 She was upset.

2 **BY MR. WHALEN:**

3 Q. Did she explain why she was upset?

4 **A. Well, I mean, I think it was obvious.**

5 **It was an older man and I didn't know who he was. I**

6 **mean, she didn't -- she didn't give me a lot of**

7 **information at that point.**

8 **I assumed it's because it was an older**

9 **man and I didn't know if she knew him or didn't know**

10 **him and she didn't tell me that.**

11 Q. Did you ask her if she knew who the

12 older man was?

13 **A. I didn't.**

14 Q. Did she ask -- you didn't ask what the

15 name of this person was?

16 **A. Why would I --**

17 **MR. PARAGANO:** Objection. Asked and

18 answered.

19 **MS. GUIDA:** Objection.

20 **THE WITNESS:** I didn't. Excuse me?

21 **BY MR. WHALEN:**

22 Q. They objected. I'll just ask again.

23 You didn't ask your daughter the name

24 of the man?

25 **MR. PARAGANO:** That's the third time

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1 now.

2 **MR. GREIFINGER:** Objection.

3 **MS. GUIDA:** Objection.

4 **MR. GREIFINGER:** You're going to have

5 to rely on her testimony and not keep asking the

6 same question.

7 **MR. WHALEN:** Okay.

8 **THE WITNESS:** Excuse me. I dropped my

9 glasses, just a minute.

10 **BY MR. WHALEN:**

11 Q. Take your time.

12 (Whereupon, brief pause.)

13 **THE WITNESS:** Oh, never mind. Go

14 ahead. I'll just get closer to the camera. Sorry.

15 **BY MR. WHALEN:**

16 Q. That's okay if you need to get your

17 glasses.

18 **A. It's all right. Sorry. My hearing's**

19 **a little off. It's fine. Go ahead.**

20 Q. All right. What was Ella doing in your

21 house that day?

22 **MR. GREIFINGER:** Objection. She can

23 answer.

24 **THE WITNESS:** What was Ella doing in

25 my house that day?

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1 **BY MR. WHALEN:**

2 Q. Yeah.

3 **MR. GREIFINGER:** Let me put my

4 objection.

5 Are you asking her to read Ella's mind

6 or to define what she thinks would have been Ella's

7 rational for being there?

8 **MR. WHALEN:** No. I'll just go around

9 it. It's fine.

10 **BY MR. WHALEN:**

11 Q. Did Ella have access to your house?

12 **A. I had given the girls my permission to**

13 **use the hot tub at the house, so I knew they might**

14 **have done that, but, other than that, I don't know**

15 **why she was there.**

16 Q. Well, yeah, that was my next question.

17 Other than you giving them access keys,

18 Ella and I presume -- did you give anyone else keys

19 or access to your hot tub?

20 **A. No, and it wasn't a key. It was a --**

21 **as I recall, it was a button. You push buttons to**

22 **get in.**

23 Q. Okay. So it's a code to get in the

24 house?

25 **A. Yes.**

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1 Q. All right.

2 **A. It was a code to get into the garage**

3 **and then there was a key that we left inside the**

4 **garage.**

5 Q. Okay. But other than that reason, to

6 come over to your house and use the hot tub, did

7 Ella have any other reasons to be at your house?

8 **MR. GREIFINGER:** Objection. You may

9 answer if you can.

10 **THE WITNESS:** No.

11 **BY MR. WHALEN:**

12 Q. All right. So do you know whether or

13 not they used your hot tub that day that you saw the

14 video depicting the older man and Ella?

15 **A. I couldn't have seen the hot tub from**

16 **the kitchen.**

17 Q. Did you ask Ella?

18 **A. No.**

19 Q. Did you ask Laura?

20 **A. No. No, I didn't. I didn't.**

21 Q. Okay. Did you take any steps to

22 confront the older man that was in your house that

23 day?

24 **A. No.**

25 Q. When you found out the name of the man

Page 57

1 that was in your house that day was Brad Mell, did
2 you take any steps to contact him?
3 **A. No.**
4 Q. Okay. Did you believe -- from what you
5 saw on the video snippets that day when you
6 discovered the video when you landed in Florida, did
7 anything on that video make you believe that Ella
8 was having a relationship with that older man?
9 **A. Not really. I didn't know what was**
10 **happening. I didn't know what it meant.**
11 Q. All right. And I think your testimony,
12 to be clear, is you never confronted Ella about this
13 video?
14 **MR. GREIFINGER:** Asked and answered.
15 Objection. Let's move along, please.
16 **BY MR. WHALEN:**
17 Q. You can answer.
18 **A. I never talked to Ella about it.**
19 Q. How about Tony Canon? Did you ever
20 talk to Tony Canon?
21 **A. Not -- not at that time. Maybe months**
22 **later, but briefly.**
23 Q. Okay. What do you recall talking to
24 Tony Canon about?
25 **A. Oh, gosh, I couldn't give you a day**

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1 **honestly. I knew this was a very upsetting thing**
2 **for them and I didn't want to make it harder for**
3 **them by trying to give them advice or direction**
4 **because it upset me and I'm upset now when I think**
5 **about it.**
6 **I just didn't want to -- I didn't want**
7 **to upset them more because I might have. I might**
8 **have upset them more by just asking questions. I**
9 **don't remember when I talked to Tony.**
10 Q. Well, how did you come to learn that
11 Tony was upset about this?
12 **A. I don't know that I really knew so**
13 **much that he was upset. I guess I assumed a father**
14 **would be upset.**
15 Q. Why?
16 **A. I don't recall that I spoke directly**
17 **with Tony about are you upset. I think I assumed he**
18 **was upset.**
19 Q. Well, what did you learn, Ms. Pickens,
20 that made you think that a father would be upset
21 about what you saw on the video in your home?
22 **MR. GREIFINGER:** Well, objection.
23 That's a different question entirely.
24 **MR. PARAGANO:** Join.
25 **MR. WHALEN:** Yeah.

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1 **BY MR. WHALEN:**
2 Q. You can answer.
3 **MS. GUIDA:** Join.
4 **MR. GREIFINGER:** Well, okay. Just so
5 we're clear --
6 **MR. WHALEN:** No speaking objections.
7 What's the basis for the objection?
8 **MR. GREIFINGER:** No, I would like you
9 to ask the question again then. I'm not going to
10 give a speaking objection, but it was a total
11 departure from the line, so let's start from scratch
12 and --
13 **MR. WHALEN:** There's no departure and
14 that's a speaking objection.
15 Dawn, can you read back the question?
16 (Whereupon, the Reporter read back.)
17 **THE WITNESS:** I assumed any father
18 would be upset. I had never spoke directly with
19 Tony about it.
20 **BY MR. WHALEN:**
21 Q. Did you ever have conversations with
22 Tony about the impact this relationship between Ella
23 and Brad had on the family?
24 **A. No.**
25 Q. Did you ever console Tony about all of

Page 60

1 this with the relationship between Brad and Ella and
2 the impact on the family?
3 **A. Years later perhaps. I think I**
4 **explained at the very beginning when I was talking**
5 **to Laura that I was devastated, they were devastated**
6 **and I -- they had my support and I loved them and I**
7 **was not going to -- I wasn't going to make things**
8 **harder and complicate matters because I knew it was**
9 **a difficult thing for them and I never spoke or**
10 **confronted Tony in any way particularly, no.**
11 Q. All right. Again, you refer to months
12 after discovering this video, you're aware that both
13 Tony and Laura are upset about the situation
14 involving Brad Mell and Ella, correct?
15 **MR. PARAGANO:** Objection to form.
16 **THE WITNESS:** I was, yes.
17 **BY MR. WHALEN:**
18 Q. Were you also aware that he had become
19 a good friend of the family at that point in time?
20 **MR. PARAGANO:** Objection to form.
21 **MS. GUIDA:** Objection to form.
22 **THE WITNESS:** Am I to answer or not?
23 **BY MR. WHALEN:**
24 Q. Yes, you can answer.
25 **A. Would you repeat that question,**

Page 61

1 please?

2 Q. Sure. The same time you found out that

3 Tony and Laura were upset about the relationship

4 between Brad and Ella, did it come to your attention

5 that Brad Mell had become a family friend to Laura

6 and Tony?

7 **MS. GUIDA:** Objection to form.

8 **MR. PARAGANO:** Objection.

9 **MR. GREIFINGER:** I'm going to object,

10 as well. You may answer.

11 **THE WITNESS:** I never knew that Brad

12 Mell was a friend of Ella's, Tony's or Laura's until

13 much later and I can't give you an exact time. It

14 was much later.

15 **BY MR. WHALEN:**

16 Q. Okay. Did you know -- did it come to

17 your attention that he was taking them on flights

18 to -- back and forth to Colby College?

19 **A. I didn't know that.**

20 Q. Did you know he was taking the family

21 to concerts?

22 **A. No, I didn't know that.**

23 Q. Were you aware of there being any

24 financial problems in Tony and Laura's household?

25 **MS. GUIDA:** Object to form.

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1 **THE WITNESS:** I didn't know that.

2 **BY MR. WHALEN:**

3 Q. Did it come to your attention that Brad

4 Mell had given Ella and Laura approximately \$50,000

5 in the summer of 2016?

6 **MR. GREIFINGER:** Objection.

7 **MS. GUIDA:** Objection to form.

8 **BY MR. WHALEN:**

9 Q. Did that come to your attention?

10 **A. No.**

11 Q. How about in summer of 2017, were you

12 aware of the fact that there was financial problems

13 in Tony and Laura's household?

14 **MS. GUIDA:** Objection to form.

15 **THE WITNESS:** No.

16 **BY MR. WHALEN:**

17 Q. Did it come to your attention that

18 \$25,000 was given your daughter, Laura, by Brad in

19 the summer of 2017?

20 **MS. GUIDA:** Objection.

21 **THE WITNESS:** No.

22 **BY MR. WHALEN:**

23 Q. Did it come to your -- after this

24 incident of Ella being at your household with an

25 unknown older male, do you know whether or not she

Page 63

1 was punished by her parents?

2 **MS. GUIDA:** Objection.

3 **THE WITNESS:** I -- am I to answer

4 that?

5 **BY MR. WHALEN:**

6 Q. You can answer.

7 **A. I don't know.**

8 Q. Well, did you express your being upset

9 to your daughter that Ella had, you know, been at

10 your house for not permitted purposes?

11 **MR. PARAGANO:** Object to form.

12 **MS. GUIDA:** Join.

13 **THE WITNESS:** I'm sorry. The

14 objections and all, it confuses me. Am I to answer?

15 **BY MR. WHALEN:**

16 Q. That's part of the trick, Ms. Pickens,

17 but I'll ask it again.

18 **A. Thank you.**

19 Q. You were upset Ella had abused your

20 trust at the house -- your own house, correct?

21 **MR. PARAGANO:** Object to form.

22 **THE WITNESS:** I was surprised, but, I

23 guess, I would say, yes.

24 **BY MR. WHALEN:**

25 Q. And you didn't confront her, that's

Page 64

1 clear, correct?

2 **A. I did not. I don't think it was my**

3 **place.**

4 Q. Did you ask your daughter, Laura, to

5 confront Ella about what she was doing in your house

6 that day?

7 **MR. GREIFINGER:** Objection.

8 **MS. GUIDA:** Objection.

9 **MR. GREIFINGER:** We've covered this

10 over and over.

11 **MR. WHALEN:** No, this is different.

12 **BY MR. WHALEN:**

13 Q. I'm asking if you took steps to make

14 sure your daughter punished your granddaughter for

15 bringing an old man into your house?

16 **MR. PARAGANO:** Objection.

17 **THE WITNESS:** I don't think that was

18 my responsibility. I -- I -- my daughter was of an

19 age and my son-in-law were of an age that I left it

20 to them.

21 I was -- I didn't want to be

22 upsetting. I didn't want to make things harder for

23 them than it was, so I didn't, no.

24 **BY MR. WHALEN:**

25 Q. So immediately upon discovering this

Page 65

1 video of a stranger in your home, you knew that
2 Laura and Tony were upset about this situation,
3 correct?
4 **MR. GREIFINGER:** Objection. That's
5 not what she said.
6 **MR. PARAGANO:** Objection.
7 **MR. WHALEN:** Well, read back her
8 answer, please, Dawn.
9 (Whereupon, the Reporter read back.)
10 **MR. WHALEN:** All right. Thank you,
11 Dawn.
12 **BY MR. WHALEN:**
13 Q. The question, Ms. Pickens, is you knew
14 it was already upsetting for Tony and Laura when you
15 discussed that video initially with Laura?
16 **A. When I called the next day, I could**
17 **hear in my daughter's voice that she was very, very**
18 **upset and after that conversation, I tried not to**
19 **be, in some way, more upsetting, more -- I don't**
20 **know how to put it -- just to make things harder for**
21 **them because I -- they were devastated.**
22 **I just -- I just left it to them.**
23 Q. Okay. Could you tell from what your
24 daughter said in that initial conversation when you
25 told her about the video and what you saw in the

Page 66

1 video, could you tell whether or not she knew who
2 the man was?
3 **A. I could not.**
4 **MR. PARAGANO:** Object to form.
5 **BY MR. WHALEN:**
6 Q. All right. Were you concerned that
7 there was a stranger in your home?
8 **MR. GREIFINGER:** Objection. This has
9 been asked. She's already expressed this. Come on.
10 Let's ask something new.
11 **MR. WHALEN:** I'll ask something new.
12 **BY MR. WHALEN:**
13 Q. Ms. Pickens, what was Laura so
14 devastated about when you first tell her about what
15 you see on the video?
16 **MR. GREIFINGER:** Objection again.
17 **MS. GUIDA:** Objection to form.
18 **MR. WHALEN:** I don't know the answer.
19 **MR. GREIFINGER:** You're asking her
20 about the emotions of somebody else. That's
21 improper.
22 **BY MR. WHALEN**
23 Q. Ms. Pickens, you testified that your
24 daughter, Laura, was devastated in that opening
25 phone call about the video, correct?

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1 **A. Yes.**
2 Q. All right. Did you ask her why she was
3 devastated?
4 **A. I assumed it was just because there**
5 **was a man in my house with her daughter and, at that**
6 **point, I could tell it was an older man and I could**
7 **tell in her voice that she was upset and devastated.**
8 **Maybe devastated is more -- I don't**
9 **know. Maybe it was more what I felt because it was**
10 **my granddaughter. She was very, very upset and she**
11 **said, mom, something like, I'm sorry or I'll take**
12 **care of this.**
13 Q. All right. And do you know what steps
14 your daughter, Laura, took to take care of the
15 situation?
16 **A. I don't.**
17 **MS. GUIDA:** Objection.
18 **BY MR. WHALEN:**
19 Q. Did you ever follow up with her to see
20 what steps she took to take care of that devastating
21 situation?
22 **MR. GREIFINGER:** Objection.
23 **MS. GUIDA:** Objection.
24 **BY MR. WHALEN:**
25 Q. You can answer.

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1 **A. I can answer that?**
2 Q. Yes.
3 **A. I'm getting confused because it goes**
4 **back and forth. I don't know if I'm to answer or**
5 **not and then I forget the question, so --**
6 Q. Okay. My question was after, she said
7 she was going to take steps to take care of this
8 situation, correct?
9 **A. Yes.**
10 Q. All right. Did you follow up with her
11 to see what steps she took to address and take care
12 of this devastating situation?
13 **MR. GREIFINGER:** Objection.
14 **THE WITNESS:** I would call every now
15 and then perhaps and say something like --
16 **MS. GUIDA:** Join.
17 **THE WITNESS:** -- is everything okay,
18 and she would say something like, mom, we're taking
19 care of this or we're doing what we can, our best,
20 and it was something like that.
21 **BY MR. WHALEN:**
22 Q. And did she ever tell you what they
23 were doing, what steps they were taking to take care
24 of it?
25 **A. No, no.**

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1 Q. All right. Did it come to your
2 attention that Laura was bedridden for days
3 following your disclosure of this video?
4 A. No.
5 Q. All right. Did you -- strike that. I
6 think I -- well, actually, I don't think I asked.
7 Do you know if your husband had any
8 conversations with Laura about the relationship
9 between Ella and this older man who we now know is
10 Brad Mell?
11 A. No, no, he did not. Actually, I tried
12 to protect my husband, you know, from anything like
13 that. He was having health problems at the time.
14 Q. Okay. So you kept him out of it as
15 much as you could?
16 A. Well, yes, as much as I could --
17 Q. All right.
18 A. -- until much later.
19 Q. All right. And you never -- just to
20 lock this down, you never shared the video with
21 Laura or Tony?
22 A. No.
23 Q. All right. Did either Laura or Tony
24 ever tell you that this older man was manipulating
25 Ella?

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1 A. We didn't have that conversation.
2 Q. All right. Did you ever follow up with
3 either Laura or Tony and ask them, hey, what's the
4 status of this thing going on, this relationship
5 going on between Ella and this older man?
6 A. That is not how I would have
7 approached it. I would have just said, is
8 everything all right, are you all right, is Ella all
9 right, and that would be the way it would go
10 because, as I said, I didn't want to interfere and I
11 didn't want to cause more heartache and more trouble
12 or any kind of -- I just left it to them.
13 Q. Would you have treated it differently
14 if Laura or someone had shared with you the fact
15 that this older man was the father of Ella's best
16 friend?
17 MR. GREIFINGER: Objection. You're
18 asking her a hypothetical of what she might have
19 done in a certain circumstance that hasn't?
20 BY MR. WHALEN:
21 Q. I'll ask you a different way,
22 Ms. Pickens.
23 Do you wish someone had told you,
24 meaning your daughter -- you daughter had told you
25 that this older man was the father of your

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1 daughter's best friend?
2 A. I don't wish that.
3 MS. GUIDA: Objection.
4 BY MR. WHALEN:
5 Q. You don't wish that you had known that
6 back in early 2016?
7 A. I don't, no. Would have broken my
8 heart more, no.
9 Q. Would you have contacted law
10 enforcement if you knew that that older man in your
11 house was your daughter's best friend's father?
12 MR. GREIFINGER: Objection.
13 MS. GUIDA: Objection.
14 MR. GREIFINGER: This one, don't
15 answer. You're berating the witness --
16 MR. WHALEN: I'm not berating.
17 MR. GREIFINGER: -- with
18 hypotheticals.
19 MR. WHALEN: It's not a hypothetical.
20 It's a question.
21 MR. GREIFINGER: It's precisely a
22 hypothetical and she's -- you're asking for
23 conversations and her mindset over and over, she's
24 answering and, now, it's what if it was this, what
25 if it was that.

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1 It's improper.
2 MR. WHALEN: All right. Thank you for
3 that.
4 BY MR. WHALEN:
5 Q. Did anyone, either Tony or Laura, ever
6 tell you that they believed that Mr. Mell, the older
7 man in your house, was making Ella do things she
8 didn't want to do?
9 A. I never had that conversation with
10 them.
11 Q. Did they ever tell you that they
12 thought he was a predator?
13 A. No.
14 Q. So you were never told that there was a
15 predator in your home with your granddaughter back
16 in early 2016?
17 MR. GREIFINGER: Objection. She's
18 answered it.
19 MR. PARAGANO: Objection.
20 MR. GREIFINGER: She just answered
21 that.
22 BY MR. WHALEN:
23 Q. Did you ever attend any mental health
24 therapy over this event with your daughter, Laura?
25 A. Not with Laura, but my own.

Page 73 1 Q. This event was so troubling, this video 2 of this older man in your home, that you needed 3 mental health therapy for it? 4 MR. PARAGANO: Object to form. 5 MR. GREIFINGER: Objection. You're 6 making it all about a video. You're assuming -- 7 MR. WHALEN: It's a speaking 8 objection. It's not appropriate. 9 MR. GREIFINGER: Nor is your question. 10 Stop doing it to her and I'll stop objecting. 11 MR. WHALEN: All right. 12 BY MR. WHALEN: 13 Q. Did you ever talk to Laura -- you never 14 talked to Laura's therapist? You were never part of 15 a joint therapy session with you and her, correct? 16 MS. GUIDA: Objection. 17 THE WITNESS: No. 18 BY MR. WHALEN: 19 Q. All right. I jumped around, so I've 20 covered a lot of ground. Let me just check my notes 21 here. 22 (Whereupon, brief pause.) 23 BY MR. WHALEN: 24 Q. Did you know whether or not your 25 daughter told Tony about this video incident right	Page 75 1 if she told him or how she told him or when she told 2 him, so -- 3 Q. My question was did you expect her to 4 tell him? 5 MS. GUIDA: Objection. 6 THE WITNESS: I didn't have 7 expectations of that. 8 BY MR. WHALEN: 9 Q. Did Ella ever apologize to you for that 10 incident in your home? 11 A. We never discussed it in so much words 12 as that, no. 13 Q. What did you discuss with Ella? 14 A. Not a great deal. Ella was young. 15 She had her mother and father and I felt she was 16 also going through a lot and had a lot to process. 17 I didn't have discussions with Ella about -- 18 Q. About that situation? 19 A. That's right. I didn't. 20 Q. Okay. Do you need a break or are you 21 okay? 22 A. Sorry? 23 Q. Do you need a break or are you okay? 24 A. I'm fine right now. 25 Q. Okay. We talked about the flying
Page 74 1 away? Do you know if she told him right away? 2 A. I don't know. 3 Q. Did it ever come to your attention, 4 Ms. Pickens, that your daughter delayed telling Tony 5 for weeks? 6 MR. GREIFINGER: Objection. She just 7 said she didn't know, so how can she qualify an I 8 don't know? 9 MR. WHALEN: I asked weeks. It's a 10 different question, Richard. 11 BY MR. WHALEN: 12 Q. Did it ever come to your attention, 13 Ms. Pickens, that your daughter did not tell Tony 14 for weeks about what you saw in that video? 15 A. It never came to my attention. 16 Q. Did you expect that she would 17 immediately tell Tony about what was on that video 18 that you saw? 19 MR. PARAGANO: Objection. 20 MS. GUIDA: Objection. 21 MR. GREIFINGER: Objection. 22 BY MR. WHALEN: 23 Q. You can answer. 24 A. I -- I -- I would have to assume. 25 I -- I didn't know when she was going to tell him or	Page 76 1 lessons. 2 You were aware that Lily was getting 3 flying lessons, but you were totally unaware that 4 Brad was involved in any way, correct? 5 A. Correct. 6 Q. All right. Did it ever come to your 7 attention that Ella, your daughter, Laura, and 8 Mr. Mell were on a group chat together? 9 A. No. 10 Q. Did it ever come to your attention that 11 there were problems in the relationship between Lily 12 and Ella in 2017? 13 A. No. 14 Q. Did your daughter ever report to you 15 that there were problems with the family -- their 16 family dynamics and strain between her and Tony? 17 MR. PARAGANO: Object to form. 18 MS. GUIDA: Objection. 19 THE WITNESS: No. 20 BY MR. WHALEN: 21 Q. Ms. Pickens, how about Grace? Did you 22 ever have any discussions with Grace about this 23 situation? 24 A. No. 25 Q. Did it ever come to your attention how

Page 77

1 upset she was when she found out about the
2 relationship between Mr. Mell and Ella?
3 **A. No.**
4 Q. And she never talked to you about it?
5 **A. No.**
6 Q. Is it true that Laura and Tony were
7 having marital problems as a result of this
8 situation and this --
9 **MS. GUIDA:** Objection.
10 **THE WITNESS:** No.
11 **MR. PARAGANO:** Join.
12 **THE WITNESS:** Am I to answer that?
13 **BY MR. WHALEN:**
14 Q. I think you did.
15 **MR. GREIFINGER:** It has been answered,
16 so why don't we move on.
17 **BY MR. WHALEN:**
18 Q. The answer was no, correct?
19 **MR. GREIFINGER:** Okay. Ask it again.
20 It's a little confusing. Just ask the question
21 again.
22 **MR. WHALEN:** Yeah.
23 **BY MR. WHALEN:**
24 Q. Is it true that Laura and Tony were
25 having marital problems as a result of this

Page 78

1 situation?
2 **A. Not that I was aware of.**
3 Q. Okay.
4 **MR. GREIFINGER:** You meant to say were
5 you aware. That was my objection.
6 **MR. WHALEN:** Okay. All right. I just
7 need, like, five minutes and I'm probably done.
8 Let's take a five-minute break.
9 (Whereupon, break taken.)
10 **BY MR. WHALEN:**
11 Q. Okay. Ms. Pickens, we just took a
12 brief break for everybody. I just have a few more
13 questions and then we'll see if anybody else has
14 questions for you.
15 Do you recall spring break in 2017
16 Laura and the family staying with you and your
17 husband down in Florida?
18 **A. I don't recall they were there then,**
19 **no.**
20 Q. Do you recall that ever happening, that
21 Laura and Tony and the grandkids would stay with you
22 down in Florida for spring break?
23 **A. In certain years, but I couldn't tell**
24 **you when. On certain years, yes, they would come.**
25 Q. Do you recall one of those certain

Page 79

1 years being the time when Ella was in this
2 relationship with Mr. Mell?
3 **A. No, I don't.**
4 Q. All right. Do you recall having any
5 discussions during that -- any spring breaks with
6 Laura or Tony about the ongoing relationship between
7 Ella and Brad?
8 **A. No, I don't.**
9 Q. Back in 2015, 2016, 2017, did you have
10 a close relationship with Laura?
11 **A. Yes, we did. We had a close**
12 **relationship.**
13 Q. How frequently would you visit and
14 spend time together with Laura and Tony?
15 **A. We were together fairly often for**
16 **holidays and I picked the kids up often from school**
17 **and would drop them off at the farm and we were**
18 **lucky to be able to do that.**
19 Q. And that was during the time that Ella
20 was in high school?
21 **A. Yes, when we were in Gladstone.**
22 Q. Okay. How about -- so would you talk
23 to her every day, Laura?
24 **A. No, I didn't talk to her every day. I**
25 **don't talk to either daughter every day.**

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1 Q. About how frequently would you talk in
2 a given week back in 2015, '16?
3 **A. I -- I don't know. Maybe once or**
4 **twice every couple weeks I would say.**
5 Q. Okay.
6 **A. I mean, we lived close and when I**
7 **dropped the kids off, we'd chat and that would be**
8 **about it.**
9 Q. Okay. And was that true during the
10 time period subsequent to you discovering this video
11 at your home?
12 **A. Was what true?**
13 Q. That relationship where you would pick
14 the kids from school take them to the farm.
15 **A. You know, I don't remember because I**
16 **think we had -- we were in Florida and we sold the**
17 **house in Gladstone shortly after we came back from**
18 **Florida that year.**
19 **Maybe it was -- I don't know the date**
20 **exactly, but we were in Florida after that, so we**
21 **would just telephone occasionally.**
22 Q. Well, I mean, you didn't move to
23 Florida at the time of Ella's graduation from high
24 school, you were still living in Jersey, correct?
25 **A. You know, I really can't remember if**

Page 81

1 we came up for that. I mean, I know I came up for
2 special occasions. Honestly, I can't tell you.
3 Q. Okay.
4 A. It's really a little foggy about when
5 we left Gladstone. I think it was September of '17
6 and I think we might have -- I don't know when she
7 graduated. I really -- I forget.
8 I honestly don't remember.
9 Q. I can represent to you my understanding
10 is that this video incident happened in early 2016
11 and Ella graduated in May or June -- I think May of
12 2016, as well.
13 Does that refresh your recollection?
14 A. I don't know the dates of the videos.
15 Q. Okay.
16 A. I can't remember.
17 Q. But you know it took place during high
18 school years for Ella, correct?
19 (Whereupon, brief pause.)
20 THE WITNESS: I recall -- I think she
21 was in her senior year. I'm not sure.
22 BY MR. WHALEN:
23 Q. Okay. And that was my question.
24 So for the duration of her senior year
25 and until you moved in the fall of 2017, was that

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1 your relationship, you'd pick up the kids and go to
2 the farm and see your daughter on weekdays?
3 A. Yes. I'd pick up Grace occasionally
4 or Lily. We would go to -- there was some bakery
5 Cocoluxe or something and get a cookie and I'd bring
6 them home and we'd chat for a little bit.
7 Q. Okay. And before you moved to Florida,
8 do you recall speaking to Lily about the flying
9 lessons?
10 A. I didn't. I didn't know Lily was
11 taking flying lessons then I don't think. I don't
12 recall knowing she was taking flying lessons then.
13 Q. Okay. Were you aware that she played
14 hockey?
15 A. Oh, yes.
16 Q. Were you aware that Mr. Mell was one of
17 the coaches in that hockey league?
18 A. I didn't know who the coaches were.
19 Q. All right. The 2017 just before you
20 moved, the four or so months leading up to you
21 moving, do you recall it coming to your attention
22 that Lily and Brad were spending time together?
23 A. No.
24 Q. Did Laura ever talk to you about Lily
25 interacting or spending time with Brad?

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1 A. No. There was a phone call. I
2 learned of that through a phone call. I was in
3 Florida.
4 Q. And what are you referring to when
5 you're referring to that?
6 A. I'm sorry?
7 Q. When you say that, you learned of that,
8 what are you referring to?
9 A. That relationship.
10 Q. Okay. And do you know approximately
11 when that phone call came in?
12 A. I don't and I didn't really know what
13 the relationship was. The phone call was brief,
14 devastating.
15 Q. Who was it with?
16 A. Laura.
17 Q. And what did she tell you?
18 A. First of all, she was -- I could tell
19 she was crying. She was sobbing. At first, I
20 thought maybe one of the kids had gotten in an
21 accident or -- and she said, mom, I don't know how
22 to tell you this.
23 And I said, oh, my God, what is it,
24 what's happened? And she said, it's Lily. And I
25 thought, oh, my God, Lily's been in an accident.

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1 She's in -- what happened?
2 I think I said, what happened to Lily?
3 And she said -- she said, I don't know how to tell
4 you, mom. And I said, please, you're scaring me.
5 What is it? And she said, it's Brad Mell.
6 Q. Brad Mell had had an inappropriate
7 sexual relationship with your granddaughter, Lily?
8 MR. PARAGANO: Object to form.
9 THE WITNESS: You know, I intuited
10 that. She didn't say it in so many words. I --
11 BY MR. WHALEN:
12 Q. Understood. Understood.
13 MR. PARAGANO: You want to let her
14 finish her answer? You keep interrupting her. Just
15 let her finish her answer.
16 MR. WHALEN: Okay.
17 BY MR. WHALEN:
18 Q. Go ahead, Ms. Pickens.
19 MR. PARAGANO: She was still talking.
20 THE WITNESS: When she said that, I --
21 I just could tell by her voice and the way she was
22 sobbing and the way she said -- and by then, I had
23 heard that name and I -- I knew -- I knew what had
24 happened with Ella.
25 And when she said it, I intuited. I

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1 didn't ask. When she said, I don't know how to tell
2 you this, it -- mothers do that. Mothers know.
3 Mothers know and I knew.
4 **BY MR. WHALEN:**
5 Q. Understood. Were you shocked to learn
6 that it was the same man who had been with Ella in
7 your house?
8 **A. I was not shocked. I was -- I was**
9 **devastated. I was so, so upset for my daughter and**
10 **my granddaughter. I don't think it was shocked. I**
11 **was just so upset for my daughter and my**
12 **granddaughter.**
13 **I just was overwhelmed with sadness.**
14 Q. Did you come to find out how Mr. Mell
15 got access to Lily?
16 **A. I have no idea.**
17 Q. Did you ever discuss that with your
18 daughter, Laura?
19 **A. I didn't want to know. I had no idea.**
20 Q. All right. Did Lily ever talk to you
21 about what occurred?
22 **A. I didn't want to -- no, I didn't talk**
23 **to Lily about it. Lily was so young. She was -- I**
24 **called her Lily Bun. She was so young and innocent.**
25 **I didn't want to have that kind of conversation with**

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1 **her.**
2 Q. Understood.
3 **A. I didn't want --**
4 Q. Go ahead. I'm sorry.
5 **A. I just didn't want to have that**
6 **conversation with her.**
7 Q. Understood. But just to be clear --
8 and this is probably my last question -- between,
9 you know, early 2017 and this devastating call from
10 Laura about Lily and Mr. Mell, you were unaware of
11 the fact that Brad Mell had time -- unsupervised
12 time with Lily?
13 **A. Definitely did not.**
14 Q. You didn't know about that, correct?
15 **A. I did not know.**
16 **MR. PARAGANO:** Objection.
17 **MR. WHALEN:** All right. Thank you for
18 your time, Ms. Pickens.
19 **THE WITNESS:** Thank you.
20 (Whereupon, brief pause.)
21 **MR. WHALEN:** It may be that no one has
22 any other additional questions. I'm not sure.
23 (Whereupon, brief pause.)
24 **MR. GREIFINGER:** I guess that's it.
25 **MR. MELL:** I have some questions.

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1 Does anyone else have anything?
2 **MR. McENROE:** I have some questions,
3 just a few.
4 **MR. MELL:** Go ahead, Harry.
5 -----
6 **EXAMINATION**
7 -----
8 **BY MR. McENROE:**
9 Q. Did Laura, your daughter, ever ask to
10 see the video from your home when you first learned
11 about the relationship with Mr. Mell and Ella?
12 **A. She did not.**
13 Q. And this video came to your attention
14 the very day that you left for Florida; is that
15 correct?
16 **A. Yes, in the evening. It might have**
17 **been past 12:00, so it might have been the next day.**
18 **It was late.**
19 Q. Okay. It didn't appear on the video
20 that either one of them was wet or had been in a hot
21 tub to your observation?
22 **A. It didn't look like they had been in a**
23 **hot tub.**
24 Q. And during the time when you returned
25 to Florida, did you ever see Ella or anyone else in

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1 your home on video?
2 **A. Just my cleaning lady.**
3 Q. Okay. And you may have been asked this
4 before, but did you ever speak with Ella regarding
5 her relationship with Mr. Mell?
6 **A. I did not.**
7 Q. Were you aware at any point from any
8 source that Mr. Mell had provided a credit card for
9 Ella's personal use?
10 **A. I didn't know that.**
11 Q. Now, you were asked previously, you
12 know, when you became aware that Mr. Mell was a
13 family friend of your daughter's family.
14 Do you recall saying you didn't know
15 this until much later?
16 **A. That's correct.**
17 Q. And do you recall the circumstances
18 under which you gained that knowledge, who told you
19 or how you learned that?
20 **A. I can't recall the exact**
21 **circumstances. I mean, it was months later and I**
22 **don't recall how exactly I came to learn that.**
23 Q. And what was the nature of your
24 knowledge or information that was conveyed to you
25 that made you understand in some fashion that

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1 Mr. Mell had become a family friend?
2 **A. I would be speculating. I really**
3 **can't remember. I can't remember how that came to**
4 **my knowledge or how I learned that. It was, as I**
5 **said, months later.**
6 **It's been years ago. I cannot remember**
7 **when, how or where I learned that -- that he was a**
8 **family friend. I didn't know that.**
9 Q. Would it be fair to assume that, more
10 likely than not, that information was conveyed to
11 you by your daughter, Laura?
12 **A. I would -- I assume that it was, yes.**
13 **I mean, I can't -- oh, I think it was. I don't**
14 **really remember. I'm --**
15 Q. Well, did you have a reaction that you
16 articulated to Laura upon learning that Mr. Mell had
17 developed a family friendship with your daughter's
18 family?
19 **MS. GUIDA: Objection.**
20 **THE WITNESS: Does that mean I answer**
21 **or no?**
22 **MR. GREIFINGER: If you can.**
23 **BY MR. McENROE:**
24 Q. You can answer until you've been
25 instructed by counsel not to answer?

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1 **A. Would you repeat the question, please?**
2 **MR. McENROE: Maybe the Court Reporter**
3 **can read it back to be precise.**
4 **THE WITNESS: Thank you.**
5 **(Whereupon, the Reporter read back.)**
6 **THE WITNESS: I -- I think that when I**
7 **heard that he had been a friend of the family, I --**
8 **my reaction -- I can't really remember, but I think**
9 **it would have been like, oh, no, something like that**
10 **because, I mean, that's the last thing you expect of**
11 **a family friend.**
12 **BY MR. McENROE:**
13 Q. Well, did you come to learn that the
14 family friendship or that relationship occurred
15 after the relationship between him and Ella was
16 revealed?
17 **MS. GUIDA: Objection.**
18 **THE WITNESS: I -- I don't know when I**
19 **learned it. I don't know if it was before or after**
20 **that.**
21 **BY MR. McENROE:**
22 Q. Was that something that was surprising
23 to you?
24 **A. Yes.**
25 **MS. GUIDA: Objection.**

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1 **MR. McENROE: All right. That's all**
2 **the questions I have. Thank you.**
3 **(Whereupon, brief pause.)**
4 **MR. MELL: Anyone else?**
5 **MR. WAGENBLAST: I just have a couple.**
6 **MR. MELL: All right.**
7 -----
8 **EXAMINATION**
9 -----
10 **BY MR. WAGENBLAST:**
11 Q. Ms. Pickens, my name is Craig
12 Wagenblast. I represent the Kimberly Ruggles Mell
13 2012 Family Trust, also referred to as the KRM
14 Trust.
15 Have you heard about the KRM Trust
16 before today?
17 **A. No.**
18 Q. Do you have any knowledge of their
19 involvement in this lawsuit?
20 **A. None.**
21 Q. Do you have any knowledge of any
22 allegations against the KRM Trust in this lawsuit?
23 **A. I have none.**
24 Q. Did you become aware at some point that
25 the relationship between Ella and Mr. Mell had

Page 92

1 ended?
2 **A. I -- I wasn't told in so many words.**
3 **I assumed it had.**
4 Q. Why did you assume it had ended?
5 **A. I don't know. I mean, just -- just**
6 **because I would have assumed it ended in my mind --**
7 **in my opinion of -- of what -- what I would do I**
8 **suppose.**
9 Q. Well, was there -- was there a certain
10 point in time where you had assumed it had ended by
11 that point?
12 **A. This -- ten years ago, I really can't**
13 **remember when I assumed something like that ended.**
14 **I -- I guess I -- I -- I hoped it had ended. I was**
15 **never told in so many words it had ended, so I can't**
16 **answer that question definitively at all.**
17 Q. Okay. In the time period after you had
18 seen the video, do you know if Mr. Mell continued to
19 spend time around the members of Laura's family?
20 **A. I don't know. I didn't know.**
21 Q. I'll give you a moment.
22 **(Whereupon, brief pause.)**
23 **THE WITNESS: Thank you. We're good.**
24 **BY MR. WAGENBLAST:**
25 Q. Okay. Did you ever receive any gifts

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1 or monetary benefits from Mr. Mell?

2 **A. No.**

3 Q. You testified before that you had

4 little knowledge about this lawsuit, correct?

5 **A. That's correct.**

6 Q. Were you involved in any conversations

7 with Laura or anyone else in the family during the

8 time period where they were contemplating filing a

9 lawsuit?

10 **A. I did not.**

11 **MR. WAGENBLAST:** Those are all the

12 questions I have. Thank you.

13 (Whereupon, brief pause.)

14 **MR. WHALEN:** Anyone else?

15 **MR. MELL:** Yeah.

16 -----

17 **EXAMINATION**

18 -----

19 **BY MR. MELL:**

20 Q. This is Mr. Mell. I just had a couple

21 questions I would like to follow up on.

22 When Laura was younger, do you know how

23 long -- I know she, since I had firsthand

24 knowledge -- that she was taking flying lessons for

25 when she was younger and kind of what age that was?

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1 **A. Laura?**

2 Q. Your daughter.

3 **MS. GUIDA:** Objection.

4 **THE WITNESS:** I can't remember when

5 that would have been. No, I can't.

6 **BY MR. MELL:**

7 Q. You said that you lived in Madison when

8 she was in high school.

9 Was she taking flying lessons when she

10 was in high school or, like, college? I'm just

11 trying to get a sense. It doesn't have to be exact

12 years, just kind of when.

13 **A. I honestly can't remember if she**

14 **actually took flying lessons. I know she wanted to,**

15 **but I can't actually remember her taking them. If**

16 **she did, it was for a very short period of time.**

17 Q. Okay. That's fair. You mentioned

18 about Nantucket, so I'm trying to define that

19 timeline a little bit more, if possible.

20 So do you think it was -- 2015 was when

21 the relationship with Ella and I started.

22 Do you think it was before or after

23 that time period that you had gone to Nantucket and

24 stayed up there and I assume it was in the

25 summertime, correct?

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1 **MR. PARAGANO:** Object to form. What's

2 the question?

3 **BY MR. MELL:**

4 Q. The question is -- I'm trying to -- did

5 they -- did she -- did the Pickens rent a house or

6 rent some accommodations in 2015 or '16 or '17?

7 **A. We did rent a house on Nantucket. I**

8 **couldn't tell you the year right now. I don't**

9 **remember.**

10 Q. But you think it was after 2015, within

11 the last ten years?

12 **A. I think it was somewhere between 2015**

13 **and 2017.**

14 Q. Okay. Fair enough. And I know you

15 also spent a lot of time on Block Island?

16 **A. Yes.**

17 **MR. PARAGANO:** Object to form.

18 **BY MR. MELL:**

19 Q. And how many summers would you guess

20 you rented on Block Island and when do you think

21 those -- when do you think you started going to

22 Block Island?

23 **A. We owned a house on Block Island for**

24 **ten years. Prior to that, we rented maybe ten years**

25 **before that. We loved that little island.**

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1 Q. Okay. Do you know when you sold the

2 house in Block Island roughly?

3 **A. Oh, 2008, I believe.**

4 Q. Okay. You mentioned the camera in the

5 living room, so -- and I recall looking at that

6 picture that, I believe, was over your fireplace.

7 And you said the camera captured me

8 looking at the picture; is that correct?

9 **MR. PARAGANO:** Object to form.

10 **THE WITNESS:** The painting was not

11 over the fireplace.

12 **BY MR. MELL:**

13 Q. Do you recall where the painting was?

14 **A. Yes. It was on the back of the -- it**

15 **was the back of the house. It was at the back. The**

16 **camera, I think, was on that table and they were**

17 **vaulted ceilings and the painting was above that.**

18 **It wasn't above the fireplace.**

19 Q. I'm just trying to get the painting was

20 where in that room? And I know you mentioned that

21 camera -- also, you had it -- it captured the front

22 door, as well?

23 **A. Exactly. You walked in the front door**

24 **and the living room was straight ahead and then at**

25 **the end of that -- into the living room there was a**

Page 97

1 bay window.
2 There was a table there and the camera
3 was on the table and the painting was above that --
4 high above.
5 Q. Okay. So you would have seen my face,
6 right, so in that -- in that orientation, if
7 you're -- if the camera's looking at the front door,
8 but the picture's above the camera, you would have
9 seen a direct face of mine?
10 A. I didn't see that. You were back by
11 the door as I recall.
12 Q. Which door?
13 A. I couldn't make out your face exactly.
14 Q. So you think maybe I was by the front
15 door or what I'm trying to figure out --
16 A. You were near the front door. The
17 camera was, like -- I don't know how many feet --
18 75, 100 maybe in front of the that. You were right
19 in front of the front door.
20 Q. Okay. So the camera wouldn't have seen
21 the picture.
22 It's just you could tell I was looking
23 at that direction; is that fair?
24 A. Yes, yes.
25 Q. Okay. Okay. Are you aware that Ella

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1 frequently recorded phone calls?
2 A. With whom?
3 Q. With you and her family.
4 A. Not aware of that.
5 Q. The cameras -- this Canary system, I
6 believe it was web-based, meaning when -- anything
7 that was recorded on the cameras was recorded
8 somewhere on the internet that you could log into to
9 review what was captured, right, on the cameras?
10 This wasn't -- you know, some cameras
11 have chips that you actually have to take the chip
12 out and put it into a viewing system, but I believe
13 this system was web-based, so you could log in on
14 your phone and you could see what was on the
15 cameras, right?
16 MR. PARAGANO: Objection to form.
17 THE WITNESS: It was an app and the
18 Canary app was on my phone and I could see from my
19 phone.
20 BY MR. MELL:
21 Q. You could see it from your phone.
22 Okay.
23 And I believe you had mentioned that
24 you're unaware of any financial help I was giving
25 your daughter and their family?

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1 A. Completely unaware.
2 Q. Would it shock you if you heard that it
3 was over \$200,000 that was given to them over a
4 two-and-a-half-year period?
5 MR. GREIFINGER: Objection.
6 MS. GUIDA: Objection.
7 BY MR. MELL:
8 Q. You can answer.
9 A. Shock me? I just have no knowledge of
10 that. I -- I would be surprised.
11 Q. Okay.
12 A. I had no knowledge of that.
13 Q. Okay. That's fair. Would that -- is
14 it -- would that be a significant amount of money to
15 them in your opinion?
16 MR. GREIFINGER: Objection.
17 MS. GUIDA: Objection.
18 MR. GREIFINGER: This is not an
19 expert. It's a fact witness. You can ask her what
20 she knows, not to speculate or opine.
21 MR. MELL: All right.
22 (Whereupon, brief pause.)
23 MR. MELL: I think that will do it for
24 me. Thank you.
25 MR. WHALEN: Richard, I just have

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1 three clear-ups and then I'm done.
2 MR. GREIFINGER: Okay.
3 -----
4 EXAMINATION
5 -----
6 BY MR. WHALEN:
7 Q. All right. Ms. Pickens, are you good
8 to continue?
9 A. Yes, I'm here.
10 Q. Okay. I'll finish this quickly for
11 you.
12 Were the family, meaning Laura and
13 Ella -- and/or Ella, aware that you had put cameras
14 up in the house?
15 A. I didn't tell anyone. I didn't -- I
16 put them there to check the comings and goings of my
17 cleaning lady and the workmen.
18 Q. Okay.
19 A. I didn't think it was necessary to
20 tell anyone.
21 Q. Okay. And you were asked a few
22 questions, I want to explore this a little further,
23 about your knowledge, if any, of Brad and Ella's
24 relationship coming to an end.
25 Was there a point in time that you did

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1 become aware that their relationship ended?
2 **A. You know, I have said -- I'll say**
3 **again, I was never told in so many words that. I**
4 **assumed it had.**
5 Q. And what was the basis for that
6 assumption?
7 **A. I think it was just motherly instinct**
8 **that I just, you know, over a period of time -- and**
9 **Ella went on about her life and Laura did, as well,**
10 **and I assumed it had ended.**
11 **I left it to my daughter to take care**
12 **of Ella and to just, you know, do what was right.**
13 Q. Do you recall Laura saying anything to
14 you that indicated to you that the relationship
15 between Brad and Ella was ending?
16 **A. We never had that conversation.**
17 Q. So the answer is no, correct?
18 **A. That's correct.**
19 Q. How about Ella? Do you recall Ella
20 saying anything to you to indicate to you that the
21 relationship between Brad and her was ending?
22 **A. I never had discussions with Ella**
23 **about this.**
24 Q. Okay. Did Laura ever tell you the
25 reasons why she and Tony could not put a stop to the

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1 Ella, Brad relationship?
2 **MS. GUIDA: Objection.**
3 **THE WITNESS: I don't understand that**
4 **question.**
5 **BY MR. WHALEN:**
6 Q. I'll try this: Did Laura ever tell you
7 she was trying -- strike that.
8 Did Laura ever tell you she wanted to
9 stop the relationship between Brad and Ella?
10 **A. She never said that to me.**
11 Q. Did she ever tell you that she was --
12 there were obstacles blocking her from stopping the
13 relationship between Brad and Ella?
14 **A. She didn't, no. We didn't have that**
15 **conversation.**
16 Q. Did you ever ask her, hey, Laura, are
17 you and Tony going to put a stop to that
18 relationship?
19 **A. No, I didn't say that. I didn't ask**
20 **that question.**
21 **MR. WHALEN: Thank you, Ms. Pickens.**
22 **I have nothing further. I'm sorry you had to go**
23 **through this.**
24 **THE WITNESS: Thank you.**
25 **MR. GREIFINGER: All right. Thank**

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1 you, everybody.
2 (Whereupon, witness excused.)
3 (Whereupon, deposition ended at 12:18
4 p.m.)
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1 **C E R T I F I C A T I O N**
2
3
4 **I, Dawn L. Stroud, a court reporter and**
5 **notary public, do hereby certify that the**
6 **proceedings, evidence and objections upon the**
7 **deposition of LORETTA PICKENS are contained fully**
8 **and accurately in the stenographic notes taken by me**
9 **upon the foregoing matter on June 10, 2025, and that**
10 **this is a true and correct transcript of the same.**
11
12
13
14 **DAWN L. STROUD**
15 **Court Reporter**
16 **Notary Public**
17
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